

SOLE SOURCE JUSTIFICATION & APPROVAL (J&A)
FEDERAL ACQUISITION REGULATION (FAR) PART 8 ACQUISITIONS

Multiple Award Schedule (MAS)/Multiple Award Contract
Orders under MAS/General Services Administration Schedules (GSA)/Federal Supply Schedules (FSS) FAR 8.401

Purchase Request Number: TBD

Contract Number: TBD

Task/Delivery Order Number: TBD

Procurement Title: Secure Facility Advisors

Estimated Value:

Statutory and Regulatory Authority: 10 U.S.C. 3204(a), FAR 8.401(b), & GSAR 538.7104-3(b)(1)(i)

J&A Number: N/A

Upon the basis of the following justification, I, as Contracting Officer, hereby approve this sole source justification pursuant to the authority of FAR 8.401(b) and GSAR 538.7104-3(b)(1)(i). The acquisition referenced herein is conducted under the Statutory Authority of the Multiple Award Schedule Program, 41 U.S.C. 152(3).

1. REQUIRING AGENCY AND CONTRACTING ACTIVITY:

Requiring Agency:

[REDACTED]

Contracting Activity:

Defense Information System Agency (DISA)/Defense Information Technology
Contracting Organization (DITCO)/PS63
6914 Cooper Avenue
Fort George G. Meade, Maryland 20755

2. NATURE/DESCRIPTION OF ACTION(S): This action is to procure secure facility advisement services from Markon, LLC for a one-year period. The procurement will be awarded as a new task order with a mix of Firm-Fixed Price (FFP), Labor Hour (LH), and Time &

Page 1 of 8 Pages

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Materials (T&M) CLINs to Markon, LLC utilizing Fiscal Year (FY) 2026 Operation & Maintenance (O&M) appropriated funds.

3. DESCRIPTION OF SUPPLIES/SERVICES: [REDACTED] requires the services of secure facility advisors and construction security technicians (CSTs) to advise the Government on facility matters, including routine maintenance and improvement projects to support/manage critical information technology, audiovisual, and communications functions performed by the [REDACTED]. The [REDACTED] conference rooms, [REDACTED], and related facilities are required to be fully operational 24/7/365 at the standard for [REDACTED] to fulfill [REDACTED] roles as [REDACTED]. The facility advisors will routinely inspect the facilities and advise the Government on necessary repairs, improvements, and renovations. They will then coordinate and oversee projects through completion.

The Period of Performance (PoP) will be for one year, beginning 24 May 2026 through 23 May 2027. The estimated life-cycle costs for the procurement are [REDACTED].

4. IDENTIFICATION OF SOLE SOURCE AUTHORITY AND DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:

(a) Circumstances Justifying Limiting the Source.

FAR 8.401(b) & GSAM/R 538.7104-3(b)(1)(i), the need is of such unusual urgency that following the procedures would result in unacceptable delays in fulfilling that need.

(b) Description of the Justification.

[REDACTED] has held an Interagency Agreement (7600A) with the [REDACTED] since 2021 for Construction Advisors from Markon, LLC, who advised [REDACTED] during the [REDACTED] renovation and renovation of other related facilities ([REDACTED]). Because Markon, LLC provided advisement on the initial construction of the facilities, they have institutional knowledge and full-understanding of all facility-related details, including communications infrastructure, and continue to advise [REDACTED] on the continuous maintenance of the 24/7/365 facilities.

Description of Events

- (1) In January 2026, [REDACTED] and [REDACTED] drafted and began routing a follow-on 7600A for signatures to ensure continued support for maintaining the secure facilities.
- (2) On 14 January 2026, [REDACTED] was unexpectedly notified that [REDACTED] will no longer extend the 7600A agreement beyond 23 May 2026, when the current Markon, LLC period of performance ends.
- (3) Due to the late notice of the 7600A with [REDACTED] not being renewed, [REDACTED] leadership then held multiple internal discussions and determined an internal contract was the best path forward. [REDACTED] notified the Contracting Office of the potential contract action and provided a rough

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draft of the potential Statement of Work (SOW) on 21 January 2026 to determine feasibility.

- (4) The following week, a formal draft of the SOW and Independent Government Cost Estimate (IGCE) for internal review were completed. [REDACTED] then identified a need for CSTs to provide oversight of third-party contractors and other uncleared personnel during maintenance, improvements, and/or renovation activities of the secured facilities.
- (5) Upon being provide the revised draft SOW/IGCE on 3 February 2026, the Contracting Office had internal discussions for a recommended course of action. A list of required documents was sent to [REDACTED] for completion in order to proceed. The draft requirement package was received on 20 February 2026.

(c) Justification.

(1) Minimum Government requirements.

- (a) The Government requires a minimum of three facility advisors to develop solutions to a wide range of facility related deficiencies and on-call CSTs to respond with 24-hour notice. Because the [REDACTED] provides 24/7 global situational awareness, crisis management facilitation, secure conference facilities, and conducts executive communications directly for [REDACTED] as well as directly supporting the [REDACTED] and [REDACTED] most facility issues are required to be resolved within a maximum of 72 hours, while some require an even quicker resolution. In order to achieve this, the source must be fully knowledgeable of the facilities and communications infrastructure within those facilities.

(2) Proposed sole source contractor.

- (a) [REDACTED] identified Markon, LLC as the sole source contractor to ensure continuous support following the expiration of the current 7600A. While Markon, LLC is not the only company that can provide secure facility advisors, this contractor has the necessary institutional knowledge and expertise of these specific facilities to ensure there is no lapse in continuity or any delays during critical situations, as they were involved in the construction and maintenance of these facilities since 2021. A new contractor would require a minimum six month transition period with Markon, LLC to ensure proper transfer of knowledge for maintaining each 24/7/365 facility.

(3) Discussion regarding cause of the limited source situation.

- (a) Had [REDACTED] been given sufficient notice that the current 7600A in place would not be renewed, this effort could have proceeded as a competitive acquisition. However, the Procurement Action Lead Time (PALT) for an order under \$10M placed on an Indefinite Delivery/Indefinite Quantity (IDIQ) contract for services utilizing the Best Value Trade-Off evaluation method is 109 business days/157 calendar days. Even if [REDACTED] had all the necessary

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information/documentation to proceed with a competitive approach when they were made aware of the situation, the PALT would put an award date at a month beyond the need by date of 23 May 2026. It also wouldn't allow for the six-month transition period necessary for a new contractor to learn/become knowledgeable of the infrastructure of the secure facilities.

- (b) Upon awarding this sole source contract to Markon, LLC, DISA plans to pursue a competitive acquisition for the follow-on contract.

(4) Demonstration of limited source.

- (a) Markon, LLC, as the incumbent contractor, is the only contractor with the institutional knowledge to continue secure facility advisor services via its General Services Administration Multiple Award Schedule contract #GS-21F-091BA.

(5) Procurement discussion.

- (a) Due to time constraints resulting from short notice of inability to renew the current 7600A, there is insufficient time to award this effort as a competitive procurement. This effort will be awarded to Markon, LLC as a continuation of a previous effort by the same contractor under the current 7600A with [REDACTED]. Therefore, the decision to procure this as sole source was made to avoid undue delay/loss of effort necessary to maintain these secure facilities, while providing sufficient time for a competitive acquisition for the follow-on effort.
- (b) Had [REDACTED] proceeded with a competitive acquisition, the award date would be well beyond the need by date, and not allow the necessary transition period from Markon, LLC to a new contractor.

(6) Impact.

- (a) Without a contract/order in place when the current 7600A expires, the [REDACTED] would lack support with the expertise necessary to maintain the 24/7/365 secure facilities that directly support the [REDACTED].
- (b) Additionally, there would be a substantial duplication of costs to the Government, as Markon, LLC would need to remain for a minimum of 180 days in order to phase in the new contractor to ensure they have sufficient knowledge of the facilities.

5. BEST VALUE DETERMINATION: GSA has already determined that prices of supplies, fixed price services, and rates for services offered at hourly rates are fair and reasonable for the purpose of establishing the schedule contract. By awarding this effort as sole source to Markon, LLC, utilizing its GSA MAS contract, the Government has determined that utilizing the incumbent contractor in the short term provides the greatest overall benefit to the Government by preventing service delays, reducing duplicative costs to hire a new contractor while also keeping on Markon, LLC for a lengthy transition period, and allowing for sufficient time to utilize proper competitive procedures. It will also maintain the expertise and knowledge Markon, LLC already has in maintaining and improving these facilities to the standard and quality expected from the [REDACTED] and other high-level officials conducting crucial and time sensitive situations. This

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results in the lowest overall cost alternative to meet the Government's needs. Also, because Markon, LLC is currently providing services through the 7600A, [REDACTED] has transparent pricing data on those services to assist in conducting a price analysis to determine fair and reasonable pricing.

6. MARKET RESEARCH: [REDACTED] Program Analyst, and [REDACTED] [REDACTED] Director of Budget & Acquisitions, conducted market research from 02 FEB 2026 to 25 FEB 2026. Both have extensive experience with the facility advisor requirement through a 7600A with the [REDACTED] since 2021. While other contractors with the capabilities to perform the service of this effort do exist, there is insufficient time to do a competitive acquisition as a result of the unexpected decision to not renew the 7600A Interagency Agreement Markon, LLC is currently providing these services through the current 7600A. [REDACTED] has transparent pricing data on the necessary services, which were confirmed by knowledgeable Government personnel at [REDACTED] in to ensure fair and reasonable pricing. [REDACTED] and [REDACTED] [REDACTED] also held a discussion with Markon, LLC in February 2026 to confirm that they are capable of fulfilling the requirements for both facility advisor services and CSTs. A review of the DISA Market Research Repository was also conducted on 24 February 2026 and resulted in zero findings for Market Research Reports that currently meet the requirement. The current [REDACTED] task order was awarded competitively using full and open competition, and the current recompetete effort is also utilizing full and open competition as its acquisition strategy. By awarding this effort on a sole source basis to Markon, LLC, [REDACTED] will have the necessary lead-time to pursue a competitive follow-on and allow for a sufficient/successful transition period in Fiscal Year 2027 when a new contract can be awarded.

Based on current market research, dated 02 FEB 2026 to 25 FEB 2026, it has been determined that only the aforementioned secure facility advisor services provided by Markon, LLC can fully meet the Government's need at this time.

7. ANY OTHER SUPPORTING FACTS: N/A

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE BARRIERS THAT LED TO THE RESTRICTED CONSIDERATION:

(a) Procurement history.

- (1) The current 7600A for this effort is [REDACTED], which was signed in May 2021 between [REDACTED] and [REDACTED]. The current agreement has a PoP end date of 23 May 2026. The original contract for [REDACTED] was awarded in 2021.
- (2) There was no exception to fair opportunity, limited-sources, and/or exception to full and open competition authorities cited for related prior actions or the current recompetete action by [REDACTED].
- (3) There was no set-aside for the acquisition.

(b) While the prior award was accomplished without the need for an exception to fair opportunity, limited sources, and/or exception to full and open competition justification, the unexpected decision to not renew the current 7600A Interagency Agreement has created an unusual urgency that prevents normal competitive procedures to avoid

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unacceptable delays and duplicative costs. The unexpected decision to not renew the current 7600A left insufficient time to complete a competitive acquisition by the need-by date and would not allow for a sufficient necessary transition period for a new contractor had Markon, LLC not been awarded.

- (c) After review of the situation and circumstances that created a barrier for full and open competition/fair opportunity of this requirement, it is determined that a sole source environment exists for this effort. However, for the follow-on action to this effort, there will be no need for a sole source environment, as [REDACTED] will have sufficient lead-time to pursue a competitive acquisition to allow for the lengthy transition period, if necessary, and plans to do so.

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TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME:

SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: PROGRAM ANALYST/

PHONE:

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME:

SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: PROGRAM ANALYST/

PHONE:

CONTRACTING OFFICER CERTIFICATION APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$10M, this review serves as approval and my written determination that the aforementioned FAR circumstances apply.

NAME:

SIGNATURE/DATE: See separate signature page

TITLE/ORGANIZATION: CONTRACTING OFFICER; DISA/PSD/PS63

PHONE:

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO:

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